

MinimumWagesact - RAG Optimized Version

=== CHUNK 1 START ===

Title: Section 1:

Keywords: short, title, extent, called, minimum, wages, extends, whole

Semantic Category: Legal Act

Section 1:

Short title and extent.

(1) This Act may be called the Minimum Wages Act, 1948.

(2) It extends to the whole of India [1] [***]

=== CHUNK 1 END ===

=== CHUNK 2 START ===

Title: Section 2:

Keywords: employment, person, scheduled, authority, government, wages, employees, respect

Semantic Category: Legal Act

Section 2:

Interpretation.

In this Act, unless there is anything repugnant in the subject or context,- (a)"adolescent" means a person

(aa) "adult" means a person who has completed his eighteenth year of age (b) "appropriate Government" means

(bb) "child" means a person who has not completed his fourteenth year of age;

(c) "competent authority" means the authority appointed by the appropriate Government by notification in

(d) cost of living index number", in relation to employees in any scheduled employment in respect of which

(e) "employer" means any person who employs, whether directly or through another person, or whether on behalf

(ii) in any scheduled employment under the control of any Government in India in respect of which minimum

(iii) in any scheduled employment under any local authority in respect of which minimum rates of wages have

(iv) in any other case where there is carried on any scheduled employment in respect of which minimum rates

STATE AMENDMENT

MADHYA PRADESH

In clause (e) of section 2 for the words, brackets and figures "and includes, except in sub-section (3)

(g) "scheduled employment" means an employment specified in the Schedule, or any process or branch of work

(h) "wages" means all remuneration, capable of being expressed in terms of money, which would, if the terms

(ii) any contribution paid by the employer to any Pension Fund or Provident Fund or under any scheme of

(iii) any travelling allowance or the value of any traveling concession;

(iv) any sum paid to the person employed to defray special expenses entailed on him by the nature of his

=== *CHUNK 2 END* ===

=== CHUNK 3 START ===

Title: Section 2:

Keywords: employee, person, clause, other, employment, respect, wages, otherwise

Semantic Category: Legal Act

(i) "employee" means any person who is employed for hire or reward to do any work, skilled or unskilled, and includes an out-worker to whom any articles or materials are given out by another person to be made
STATE AMENDMENTS
MADHYA PRADESH
In section 2 clause (i) shall be renumbered as clause (ee) and to clause (ee) as so renumbered the following shall be added
"Explanation : An employee who has been dismissed, discharged or retrenched from employment or whose employment has been terminated
MAHARASHTRA
In section 2, in clause (z), for the words "and management of that other persons, "the words "and management of that other persons" shall be substituted
3 of 1963.

=== *CHUNK 3 END* ===

=== CHUNK 4 START ===

Title: Section 3:

Keywords: part, minimum, rates, wages, employment, fixing, appropriate, government

Semantic Category: Legal Act

Section 3:

Fixing of minimum rates of wages.

(1) The appropriate Government shall, in the manner hereinafter provided, - (a) fix the minimum rates of

=== *CHUNK 4 END* ===

=== CHUNK 5 END ===

=== CHUNK 6 START ===

Title: section 27:

Keywords: state, clause, words, government, rates, minimum, wages, employment

Semantic Category: Legal Act

STATE AMENDMENTS

ANDHRA PRADESH

In clause (a) of sub-section (1) of section 3 - (a) in sub-clauses (i) and (it), for the words, figures (b) in sub-clause (iii), for the words, "one year" the words "two years" shall be substituted - Andhra P

BIHAR

In section 3, sub-section (2A) shall be omitted - Bihar Ordinance No. 41 of 1982.

In sub-clause (i) of clause (a) of sub-section (1) of section 3 for the words and figures "before the 31 3 of 1961.

GUJARAT

In section 3- (1) in clause (a) of sub-section (1) (a) in sub-clause (i), the following Provisos shall b Provided further that the State Government may, instead of fixing minimum rates of wages under this sub- (b) in sub-clause (ii),- (i) after the figure"1959" the following Proviso shall be inserted, namely- "Pr (iii) in sub-clause (iii) the following Provisos shall be added at the end, namely - "Provided that, the Provided further that, where the State Government has for any reason not fixed the minimum rates of wages (2) To sub-section (1A), the following Proviso shall be added, namely- "Provided that, where the State G

KERALA

In sub-section (1) of section 3- (i) in the opening words, for the words "The appropriate Government "th (ii) in clause (a),- (a) in sub-clauses (i) and (ii), for the figures, letters and words "31st day of De (b) after the existing proviso, the following further proviso shall be inserted, namely:- "Provided furt Explanation: For the purposes of this proviso, the expression "employees let out" with reference to an e (i) employees employed in a particular locality in the employment, the minimum rates of wages payable to (ii) employees employed in any process or branch of work which was not in existence in the employment at

MADHYA PRADESH

=== *CHUNK 6 END* ===

=== CHUNK 7 START ===

Title: section 27:

Keywords: state, rates, clause, employment, minimum, wages, government, part

Semantic Category: Legal Act

In section 3, (1) in sub-section (1),- (a) the proviso to sub-clause (ii) of clause (a) shall be omitted
Provided further that the State Government may, instead of fixing minimum rates of wages under sub-claus
Provided further that the State Government may, instead of fixing minimum rates of wages under this sub-
(b) fix the minimum rates of wages for the class or classes of such employment or category or categories
(c) fix the minimum rates of wages, mentioned under clause (a) or clause (b), f or the whole State or fo
MAHARASHTRA
(1) In clause (a) of sub-section (1),- (a) in sub-clause (i), the words, figures and letters "before the
"Provided that, the State Government may, instead of fixing minimum rates of wages under this sub-clause
(b) in sub-clause (it), the words, figures and letters "before the 31st day of December, 1959" shall be
(c) in sub-clause (iii), the following provisos shall be added at the end, namely:
"Provided that, the State Government may, instead of fixing minimum rates of wages under this sub-clause
Provided further that, where the State Government has not for any reason fixed the minimum rates of wage

=== *CHUNK 7 END* ===

=== CHUNK 8 START ===

Title: section 27:

Keywords: minimum, wages, respect, employment, state, government, rates, year

Semantic Category: Legal Act

(2) to sub-section (1A), the following proviso shall be added, namely: - "Provided that, where the State
UTTAR PRADESH
In sub-clauses (i) and (ii) of clause (a) of sub-section (1) of section 3 of the Minimum Wages Act, 1948
Act No. 20 of 1960.
Minimum Wages Act, 1948

=== *CHUNK 8 END* ===

=== CHUNK 9 START ===

Title: Section 4:

Keywords: rate, allowance, cost, living, wages, appropriate, government, respect

Semantic Category: Legal Act

Section 4:

Minimum rate of wages.

(1) Any minimum rate of wages fixed or revised by the appropriate Government in respect of scheduled emp

(2) The cost of living allowance and the cash value of the concessions in respect of supplies of essenti

=== *CHUNK 9 END* ===

=== CHUNK 10 START ===

Title: Section 5:

Keywords: minimum, wages, notification, rates, appropriate, government, date, respect

Semantic Category: Legal Act

Section 5:

Procedure for fixing and revising minimum wages.

(1) In fixing minimum rates of wages in respect of any scheduled employment for the first time under this section,

(2) After considering the advice of the committee or committees appointed under clause (a) of sub-section (1),

Provided that where the appropriate Government proposes to revise the - minimum rates of wages by the month or

=== *CHUNK 10 END* ===

=== CHUNK 11 START ===

Title: Section 6:

Keywords: committees, advisory, omitted, minimum, wages, amendment

Semantic Category: Legal Act

Section 6:
Advisory committees and sub-committees.
Omitted by the Minimum Wages (Amendment) Act, 1957

=== *CHUNK 11 END* ===

=== CHUNK 12 START ===

Title: Section 7:

Keywords: advisory, board, committees, appropriate, government, purpose, ordinating, work

Semantic Category: Legal Act

Section 7:

Advisory Board.

For the purpose of co-ordinating the work of [17] [committees and sub committees appointed under section

=== *CHUNK 12 END* ===

=== CHUNK 13 START ===

Title: Section 8:

Keywords: central, advisory, board, government, persons, matters, number, independent

Semantic Category: Legal Act

Section 8:

Central Advisory Board.

(1) For the purpose of advising the Central and State Governments in the matters of the fixation and rev

(2) The Central Advisory Board shall consist of persons to be nominated by the Central Government repres

=== CHUNK 13 END ===

=== CHUNK 14 START ===

Title: Section 9:

Keywords: committee, board, government, state, persons, independent, called, question

Semantic Category: Legal Act

Section 9:

Composition of committees, etc.

Each of the committees, sub-committees [18] [***] and the Advisory Board shall consist of persons to be
STATE AMENDMENTS

MADHYA PRADESH

In section 9, - (1) after the words "and independent persons", the words "including officers of Government
(2) for the words "such independent persons", the words "such independent persons or such officers of Government"

Explanation: In this section, - (i) "a person representing employer" shall mean - (a) an employer; or (b)
(ii) "a person representing employees" shall mean, - (a) an employee; or (b) an officer of trade union

After section 9, the following section shall be inserted, namely:- "9A. Finality of orders constituting
Committee or Sub-committee shall be called in question in any manner in any Court of Law on the ground m
RAJASTHAN

To section 9 as the following Explanation shall be added and shall be deemed always to have been added,

After section 9, the following new section shall be inserted, namely- "9A. Finality of orders constituting
TAMIL NADU

After section 9, the following section shall be inserted, namely:- "9A. Saving-No order of the State Gov

=== *CHUNK 14 END* ===

=== CHUNK 15 START ===

Title: Section 10:

Keywords: errors, notification, correction, appropriate, government, time, official, gazette

Semantic Category: Legal Act

Section 10:

Correction of errors.

(1) The appropriate Government may, at any time, by notification in the Official Gazette, correct clerical

(2) Every such notification shall, as soon as may be after it is issued, be placed before the Advisory B

=== *CHUNK 15 END* ===

=== CHUNK 16 START ===

Title: Section 11:

Keywords: wages, kind, concession, minimum, appropriate, government, rates, cash

Semantic Category: Legal Act

Section 11:

Wages in kind.

(1) Minimum wages payable under this Act shall be paid in cash.

(2) Where it has been the custom to pay wages wholly or partly in kind, the appropriate Government being

(3) If the appropriate Government is of the opinion that provision should be made for the supply of esse

(4) The cash value of wages in kind and of concession in respect of supplies of essential commodities at

STATE AMENDMENTS

MADHYA PRADESH

Section 11 shall be renumbered as section 4A-Act No. 23 of 1961.

Minimum Wages Act, 1948

=== *CHUNK 16 END* ===

=== CHUNK 17 START ===

Title: Section 12:

Keywords: wages, rate, employment, minimum, scheduled, payable, notification, higher

Semantic Category: Legal Act

Section 12:

Payment of minimum rates of wages.

(1) Where in respect of any scheduled employment a notification under section 5 [20] [***] is in force,

(2) Nothing contained in this section shall affect the provisions of the Payment of Wages Act 1936 (4 of 1936).

STATE AMENDMENTS

BIHAR

In section 12 after sub-section (1), the following sub-section shall be inserted, namely:- "(1A) Where in respect of any scheduled employment a notification under section 5 [20] [***] is in force,

MADHYA PRADESH

In section 12 after sub-section (1), the following sub-section shall be inserted, namely:- "(1A) Where in respect of any scheduled employment a notification under section 5 [20] [***] is in force,

=== *CHUNK 17 END* ===

=== CHUNK 18 START ===

Title: Section 13:

Keywords: work, employees, hours, duty, working, employment, government, engaged

Semantic Category: Legal Act

Section 13:

Fixing hours for a normal working day, etc.

(1) In regard to any scheduled employment minimum rates of wages in respect of which have been fixed under section 12, the Government may, by order, provide for

(b) provide for a day of rest in every period of seven days which shall be allowed to all employees or to any class of employees or to any class of establishments or to any class of work

(c) provide for payment for work on a day of rest at a rate not less than the overtime rate.

(2) The provisions of sub-section (1) shall, in relation to the following classes of employees, apply only to such employees as are engaged in any of the following classes of work

(a) employees engaged on urgent work, or in any emergency which could not have been foreseen or prevented

(b) employees engaged in work in the nature of preparatory or complementary work which must necessarily be done in connection with the work of the establishment

(c) employees whose employment is essentially intermittent;

(d) employees engaged in any work which for technical reasons has to be completed before the duty is over

(e) employees engaged in a work which could not be carried on except at times dependent on the irregularity of the work

(3) For the purposes of clause (c) of sub-section (2) employment of an employee is essentially intermittent if he is employed for a period of not more than three months in any year

STATE AMENDMENTS

MAHARASHTRA

In section 13,- (a) in sub-section (1), after clause (a) the following shall be inserted, namely:- "(aa)

=== *CHUNK 18 END* ===

=== CHUNK 19 START ===

Title: Section 14:

Keywords: hour, overtime, rate, fixed, excess, government, time, provisions

Semantic Category: Legal Act

Section 14:

Overtime.

(1) Where an employee, whose minimum rate of wages is fixed under this Act by the hour, by the day or by

(2) Nothing in this Act shall prejudice the operation of the provisions of [23] [section 59 Of the Factor

STATE AMENDMENTS

MADHYA PRADESH

In section 14 after sub-section (1), the following sub-section shall be inserted, namely:- "(1A) The Sta
23 of 1961.

=== CHUNK 19 END ===

=== CHUNK 20 START ===

Title: Section 15:

Keywords: wages, normal, working, work, works, less, provided, entitled

Semantic Category: Legal Act

Section 15:

Wages of worker who works for less than normal working day.

If an employee whose minimum rate of wages has been fixed under this Act by the day works on any day on

Provided, however, that he shall not be entitled to receive wages for a full normal working day- (i) in

=== *CHUNK 20 END* ===

=== CHUNK 21 START ===

Title: Section 16:

Keywords: wages, each, class, work, respect, minimum, rate, more

Semantic Category: Legal Act

Section 16:

Wages for two or more classes of work.

Where an employee does two or more classes of work to each of which a different minimum rate of wages is

STATE AMENDMENTS

MADHYA PRADESH

In section 16 for the words "in respect of the time respectively occupied in each such class of work, wa

=== CHUNK 21 END ===

=== CHUNK 22 START ===

Title: Section 17:

Keywords: minimum, rate, time, piece, wages, work, employee, employed

Semantic Category: Legal Act

Section 17:

Minimum time rate wages for piece work.

Where an employee is employed on piece work for which minimum time rate and not a minimum piece rate has

=== *CHUNK 22 END* ===

=== CHUNK 23 START ===

Title: Section 18:

Keywords: prescribed, employees, wage, employer, particulars, employed, scheduled, government

Semantic Category: Legal Act

Section 18:

Maintenance of registers and records.

(1) Every employer shall maintain such registers and records giving such particulars of employees employ

(2) Every employer shall keep-exhibited, in such manner as may be prescribed, in the factory, workshop o

(3) The appropriate Government may, by rules made under this Act, provide for the issue of wage books or

STATE AMENDMENTS

BIHAR

In section 18 after sub-section (3), the following sub-section shall be inserted, namely:- "(4) The appr

MADHYA PRADESH

In section 18 after sub-section (3), the following sub-section shall be inserted, namely:- "(4) Every em

After section 18, the following section shall be inserted, namely:- "18A. Chief Inspector- The State Gov

MAHARASHTRA

In section 18 in sub-section (3), after the words "wage slips" at both the places where they occur, the

=== CHUNK 23 END ===

=== CHUNK 24 START ===

Title: Section 19:

Keywords: person, work, words, local, within, wages, inspector, limits

Semantic Category: Legal Act

Section 19:

Inspectors.

(1) The appropriate Government may, by notification in the Official Gazette, appoint such persons as it

(2) Subject to any rules made in this behalf, an Inspector may, within the local limits for which he is

(b) examine any person whom he finds in any such premises or place and who, he has reasonable cause to b

(c) require any person giving out-work and any out-workers, to give any information, which is in his pow

(d) seize or take copies of such register, record of wages or notices or portions thereof as he may cons

and (e) exercise such other powers as may be prescribed.

(3) Every Inspector shall be deemed to be a public servant with in the meaning of the Indian Penal Code

(4) Any person required to produce any document or thing or to give any information by an inspector unde

STATE AMENDMENTS

BIHAR

In section 19 in sub-section (2) after clause (d), the following new clauses shall be inserted, namely:-

MADHYA PRADESH

In section 19,- (1) in sub-section (1), for the words "and define the local limits within which they sha

(2) in sub-section (2),- (a) for the words "local limits for which he is appointed" the words "areas of

(b) in clause (a), after the words "other public authority" the words "or such person representing emplo

=== CHUNK 24 END ===

=== CHUNK 25 START ===

Title: Section 20:

Keywords: authority, payment, application, amount, magistrate, wages, paid, employee

Semantic Category: Legal Act

Section 20:

Claims.

(1) The appropriate Government may, by notification in the Official Gazette, appoint any Commissioner for

(2) Where an employee has any claim of the nature referred to in sub-section (1)] the employee himself,

Provided that every such application shall be presented within six months from the date on which the min

Provided further that any application may be admitted after the said period of six months when the appli

(3) When any application under sub-section (2) is entertained, the Authority shall hear the applicant an

(ii) in any other case, the payment of the amount due to the employee, together with the payment of such

(4) If the Authority hearing any application under this section is satisfied that it was either maliciou

(6) Every direction of the Authority under this section shall be final.

(7) Every Authority appointed under sub-section (1) shall have all the powers of a Civil Court under the

=== *CHUNK 25 END* ===

=== CHUNK 26 START ===

Title: Chapter XXXV of the Code of Criminal Procedure, 1898 (5 of 1898).

Keywords: authority, words, substituted, following, namely, officer, government, state

Semantic Category: Legal Act

Chapter

XXXV of the Code of Criminal Procedure, 1898 (5 of 1898).

STATE AMENDMENTS

BIHAR

In section 20- (a) in sub-section (1) for the words "or any officer of the State Government not below th

(b) in sub-section (3) after the words "the Authority shall hear the applicant and the employer" and bef

(d) for sub-section (6), the following sub-section shall be substituted, namely:- "(6) Any employer or w

In section 20- (i) after sub-section (4), the following sub-section shall be inserted, namely:- "(4A) No

(ii) after sub-section (5), the following sub-section shall be inserted, namely:- "(5A) At the time of h

KARNATAKA

In sub-section (1) of section 20, for the words "stipendary Magistrate" the words "Judicial Magistrate"

MADHYA PRADESH

In section 20,- (i) in the provisos to sub-section (2), for the words "six months" occurring twice, the

For sub-section (1) of section 20 the following sub-section shall be substituted namely:- "(1) The appro

MAHARASHTRA

=== *CHUNK 26 END* ===

=== CHUNK 27 START ===

Title: Chapter XXXV of the Code of Criminal Procedure, 1898 (5 of 1898).

Keywords: rajasthan, wages, maharashtra, tahsildar, expression, after, words, minimum

Semantic Category: Legal Act

In section 20 in sub-section (1) after the words "payment of less than the minimum rates of wages" the w

In section 20 to sub-section (1), the following proviso shall be added, namely:- "Provided that the Stat

Explanation-For the purposes of this proviso, the expression "Block Development Officer" has the meaning

RAJASTHAN

In section 20, in sub-section (1), after the expression "Labour Commisisoner", the expression "or a Vika

=== CHUNK 27 END ===

=== CHUNK 28 START ===

Title: Section 21:

Keywords: fees, application, respect, amount, court, other, presented, proceedings

Semantic Category: Legal Act

Section 21:

Single application in respect of a number of employees.

(1) Subject to such rules as maybe prescribed, a single application] may be presented under section 20 on

STATE AMENDMENTS

GUJARAT

After section 21, the following section shall be inserted, namely:- "21A Liability for payment of Court-

Provided that, when the application is presented by an Inspector, he shall not be liable to pay the proc

(2) Where the applicant succeeds in such proceedings, the authority hearing the application shall calcul

MAHARASHTRA

After section 21, the following section shall be inserted, namely:- "21A. Liability for payment of Court-

Provided that, when the application is presented by an Inspector, he shall not be liable to pay the proc

(2) Where the applicant succeeds in such proceedings, the authority hearing the application shall calcul

=== *CHUNK 28 END* ===

=== CHUNK 29 START ===

Title: Section 22:

Keywords: extend, fine, maharashtra, inspector, employee, less, wages, amount

Semantic Category: Legal Act

Section 22:

Penalties for certain offences.

Any employer who- (a) pays to any employee less than the minimum rates of wages fixed for that employee'

STATE AMENDMENTS

MAHARASHTRA

In section 22 in clause (a), after the words "Provisions of this Act" the following shall be inserted, n

After section 22, the following new section shall be inserted, namely:- "22A. Penalty for obstructing In

=== *CHUNK 29 END* ===

=== **CHUNK 30 START** ===

Title: Section 22A:

Keywords: provision, other, extend, general, offences, employer, contravenes, rule

Semantic Category: Legal Act

Section 22A:

General provision for punishment of other offences.

Any employer who contravenes any provision of i this Act or of any rule or order made there under shall,

STATE AMENDMENT

BIHAR

For section 22A, the following section shall be substituted namely:- "22A. General provision for pun is

=== **CHUNK 30 END** ===

=== CHUNK 31 START ===

Title: Section 22B:

Keywords: clause, complaint, unless, offence, made, within, substituted, vide

Semantic Category: Legal Act

Section 22B:

Cognizance of offences.

(1) No Court shall take cognizance of a complaint against any person for an offence- (a) under clause (

(b) under clause (b) of section 22 or under section 22A except on a complaint made by or with the sanction

(2) No Court shall take cognizance of an offence- (a) under clause (a) or clause (b) of section 22, unless

STATE AMENDMENT

BIHAR

In section 22B in sub-section (1) for clause (a), the following clause shall be substituted, namely:- "(

In clause (b) of sub-section (2) of section 22B the following proviso shall be inserted, namely :- "Provid

GUJARAT

In section 22B in sub-section (2), for clause (b), the following shall be substituted, namely:- "(b) und

MADHYA PRADESH

In section 22B in clause (a) of sub-section (i), for the words and figures "unless an application in res

and (ii) in sub-section (2) in clause (a), for the words "one month" the words "three months" shall be s

MAHARASHTRA

In section 22B in sub-section (2), for clause (b), the following shall be substituted, namely:- "(b) und

=== *CHUNK 31 END* ===

=== CHUNK 32 START ===

Title: Section 22C:

Keywords: offence, company, prosecution, committed, state, after, principal, person

Semantic Category: Legal Act

Section 22C:

Offences by companies.

(1) If the person committing any offence under this Act is a company, every person who at the time the offence was committed was in the management of the company shall be deemed to be guilty of the offence, provided that nothing contained in this sub-section shall render any such person liable to any punishment if he proves that he did not know or had no reason to believe that the company was guilty of the offence.

(2) Notwithstanding anything contained in sub-section (1), where an offence under this Act has been committed by a company and it is proved that the offence was committed with the consent or connivance of, or is attributable to, any person who was at the time in the management of the company, such person shall also be deemed to be guilty of the offence.

Explanation.-For the purposes of this section,- (a) "company" means any body corporate and includes a firm or other unincorporated association of individuals; and (b) "management" means the management of the affairs of the company.

STATE AMENDMENTS

MADHYA PRADESH

After section 22C of the Principal Act, the following section shall be inserted, namely:- "22CC. Liability of persons in management of company for offence committed by company."

Provided that where by virtue of the provisions of sub-section (1) a principal is convicted of an offence, the provisions of this section shall apply only to such scheduled employments as the State Government may, by notification, specify in this behalf.

(2) The provisions of this section shall apply only to such scheduled employments as the State Government may, by notification, specify in this behalf.

UTTAR PRADESH

After section 22C, the following section shall be inserted, namely:- "22CC Compounding of Offences.-An offence under this Act shall be compoundable by the offender or by any person on his behalf."

(i) after the institution of the prosecution, the composition shall amount to acquittal of the offender; and

MANIPUR

After section 22C, the following section shall be inserted, namely- "22CC. Compounding of offences.-An offence under this Act shall be compoundable by the offender or by any person on his behalf."

=== CHUNK 32 END ===

=== CHUNK 33 START ===

Title: Section 22C:

Keywords: after, institution, prosecution, composition, amount, acquittal, offender, manipur

Semantic Category: Legal Act

(ii) after the institution of the prosecution, the composition shall amount to acquittal of the offender

=== *CHUNK 33 END* ===

=== CHUNK 34 START ===

Title: Section 22D:

Keywords: employee, amounts, payment, account, deposited, prescribed, madhya, pradesh

Semantic Category: Legal Act

Section 22D:

Payment of un disbursed amounts due to employees.

All amounts payable by an employer to an employee as the amount of minimum wages of the employee under t
STATE AMENDMENT

MADHYA PRADESH

Section 22D shall be renumbered as section 23 - Madhya Pradesh Act No. 23
of 1961.

=== *CHUNK 34 END* ===

=== CHUNK 35 START ===

Title: Section 22E:

Keywords: employer, government, contract, attachment, amount, other, respect, debt

Semantic Category: Legal Act

Section 22E:

Protection against attachment of assets of employer with Government.

Any amount deposited with the appropriate Government by an employer to secure the due performance of a contract.

=== *CHUNK 35 END* ===

=== CHUNK 36 START ===

Title: Section 22F:

Keywords: scheduled, notification, provisions, wages, employments, madhya, pradesh, payment

Semantic Category: Legal Act

Section 22F:

Application of Payment of Wages Act, 1936, to scheduled employments.

(1) Notwithstanding anything contained in the Payment of Wages Act, 1936 (4 of 1936), the appropriate Go

(2) Where all or any of the provisions of the said Act are applied to wages, payable to employees in any

STATE AMENDMENTS

MADHYA PRADESH

In section 22F in sub-section (2), for the words "local limits" the word "area" shall be substituted. -

After section 22F, the following section shall be inserted, namely - "22G. Registration of certain sched

(2) Nothing in sub-section (i) shall apply to such of establishments to which the provisions of the Fact

=== CHUNK 36 END ===

=== **CHUNK 37 START** ===

Title: Section 23:

Keywords: employer, offence, person, other, whom, charges, actual, offender

Semantic Category: Legal Act

Section 23:

Exemption of employer from liability in certain cases.

Where an employer is charged with an offence against this Act, he shall be entitled, upon complaint duly

Provided that in seeking to prove, as aforesaid, the employer may be examined on oath, and the evidence

STATE AMENDMENTS

MADHYA PRADESH

Section 23 shall be renumbered as section 22D - Act No. 23 of 1961.

Minimum Wages Act, 1948

=== **CHUNK 37 END** ===

=== **CHUNK 38 START** ===

Title: Section 24:

Keywords: plaintiff, subject, application, suits, court, entertain, suit, recovery

Semantic Category: Legal Act

Section 24:

Bar of suits.

No Court shall entertain any suit for the recovery of wages insofar as the sum so claimed - (a) forms th

=== **CHUNK 38 END** ===

=== **CHUNK 39 START** ===

Title: Section 25:

Keywords: minimum, rate, wages, contracting, contractor, agreement, whether, made

Semantic Category: Legal Act

Section 25:

Contracting out.

Any contractor agreement, whether made before or after the commencement of this Act whereby an employee

=== **CHUNK 39 END** ===

=== CHUNK 40 START ===

Title: Section 26:

Keywords: government, employees, scheduled, employment, subject, conditions, apply, direct

Semantic Category: Legal Act

Section 26:

Exemptions and exceptions.

(1) The appropriate Government may, subject to such conditions, if any, as it may think fit to impose, d

(2) The appropriate Government may, if for special reasons it thinks so fit, by notification in the Offi

(2A) The appropriate Government may, if it is of opinion that having regard to the terms and conditions

(3) Nothing in this Act shall apply to the wages payable by an employer to a member of his family who is

Explanation- In this sub-section a member of the employer's family shall be deemed to include his or her

STATE AMENDMENTS

MADHYA PRADESH

In section 26 after sub-section (2A), the following sub-section shall be inserted, namely:

"(2AA) Where the State Government is of the opinion that it is necessary or expedient in the public inte

MAHARASHTRA

In section 26 to sub-section (2A), the following proviso shall be added namely:

"Provided that, the powers of the State Government under this sub-section may, subject to the control of

=== *CHUNK 40 END* ===

=== CHUNK 41 START ===

Title: Section 27:

Keywords: state, government, schedule, power, notification, authority, after, done

Semantic Category: Legal Act

Section 27:

Power of State Government to add to Schedule.

The appropriate Government, after giving by notification in the Official Gazette not less than three months prior to the making of the amendment, may add to the Schedule any law or part of a law for the time being in force in the State.

STATE AMENDMENTS

BIHAR

After section.27, the following sections shall be inserted, namely:

"27A. Protection to persons acting under the Act. - No suit, prosecution or other legal proceeding shall be brought against any person for anything which he has done in good faith in the exercise of the powers conferred by the Act.

27B. Transfer of cases from one Court to another. - The State Government or any authority subordinate to it may, by order, transfer any case from one Court to another.

MADHYA PRADESH

For section 27, the following section shall be substituted, namely:

"27. Power of State Government to amend Schedule. - The State Government after giving, by notification, in the Official Gazette not less than three months prior to the making of the amendment, may add to the Schedule any law or part of a law for the time being in force in the State.

After section 27, the following sections shall be inserted, namely:

"27A. Protection to persons acting under the Act. - No suit, prosecution or other legal proceeding shall be brought against any person for anything which he has done in good faith in the exercise of the powers conferred by the Act.

27B. Delegation of power- (1) The State Government may, by order, direct that any power, other than the power conferred by section 27, may be exercised by any officer or authority subordinate to it.

(2) Nothing in the Act shall derogate from the right of the State Government to exercise any power delegated to it.

=== *CHUNK 41 END* ===

=== CHUNK 42 START ===

Title: Section 28:

Keywords: government, central, give, directions, state, power, carrying, execution

Semantic Category: Legal Act

Section 28:

Power of Central Government to give directions.

The Central Government may give directions to a State Government as to the carrying into execution of th

=== *CHUNK 42 END* ===

=== CHUNK 43 START ===

Title: Section 29:

Keywords: central, government, make, rules, business, power, subject, condition

Semantic Category: Legal Act

Section 29:

Power of the Central Government to make rules.

The Central Government may, subject to the condition of previous publication, by notification in the Off

=== *CHUNK 43 END* ===

=== CHUNK 44 START ===

Title: Section 30:

Keywords: prescribe, wages, normal, working, wage, provide, slips, words

Semantic Category: Legal Act

Section 30:

Power of appropriate Government to make rules.

- (1) The appropriate Government may, subject to the condition of previous publication, by notification in
- (2) Without prejudice to the generality of the foregoing power, such rules may - (a) prescribe the term
- (b) prescribe the method of summoning witnesses, production of documents relevant to the subject-matter
- (c) Prescribe the mode of computation of the cash value of wages in kind and of concessions in respect o
- (d) prescribe the time and conditions of payment of, and the deductions permissible from wages;
- (e) provide for giving adequate publicity to the minimum rates of wages fixed under this Act;
- (f) provide for a day of rest in every period of seven days and for the payment of remuneration in respe
- (h) prescribe the cases and circumstances in which an employee employed for a period of less than the re
- (i) prescribe the form of registers and records to be maintained and the particulars to be entered in su
- (j) provide for the issue of wage books and wage slips and prescribe the manner of making and authentica
- (k) prescribe the powers of Inspectors for purposes of this Act;
- (l) regulate the scale of costs that may be allowed in proceedings under section 20;
- (m) prescribe the amount of court-fees payable in respect of proceedings under section 20; and (n) provi

STATE AMENDMENTS

MAHARASHTRA

- In section 30 in sub-section (2), (1) in clause (g), for the words "a normal working day" the words "a n
- (2) in clause (1), for the words "and wages slips", at both the places where they occur, the words "or w

=== CHUNK 44 END ===

=== CHUNK 45 START ===

Title: Section 30A:

Keywords: rule, made, session, government, laid, before, effect, central

Semantic Category: Legal Act

Section 30A:

Rules made by Central Government to be laid before Parliament.

Every rule made by the Central Government under this Act shall be laid as soon as may be after it is made.

STATE AMENDMENTS

MADHYA PRADESH

After section 30, the following section shall be inserted, namely:

"30A. Removal of difficulties.-If any difficulty arises in giving effect to the provisions of this Act,

=== CHUNK 45 END ===

=== CHUNK 46 START ===

Title: Section 31:

Keywords: wages, minimum, rates, fixed, principal, date, amendment, during

Semantic Category: Legal Act

Section 31:

Validation of fixation of certain minimum rates of wages.

Where during the period - (a) commencing on the 1st day of April, 1952, and ending with the date of the

Provided that nothing contained in this section shall extend, or be construed to extend, to affect any p

STATE AMENDMENTS

MADHYA PRADESH

After section 31, the following section shall be inserted, namely:

"31A. Validation of certain minimum rates of wages, - (1) The rates of minimum wages fixed or revised in

(2) The rates of minimum wages fixed or revised in respect of employment specified in Part 11 of the Sch

Provided that nothing contained in this section shall extend or be construed to extend to affect any per

RAJASTHAN

After section 31, the following section shall be inserted, namely:

=== *CHUNK 46 END* ===

=== CHUNK 47 START ===

Title: Section 31:

Keywords: minimum, wages, validation, rates, fixed, revised, rajasthan, employment

Semantic Category: Legal Act

"31A. Validation of certain minimum rates and wages.- The rates of minimum wages fixed or revised before

=== *CHUNK 47 END* ===